

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF Bronx

ROBERTO RIVERA,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY  
DEPARTMENT OF CORRECTIONS, AND RIKERS  
CORRECTIONS OFFICER(S) JOHN DOE #1-10,

Defendant(s).

Index No.

*Summons*

Date Index No. Purchased: October 29, 2014

To the above named Defendant(s)

City of New York  
100 Church Street  
NY, NY 10007

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is CPLR 504(3)  
which is the County where actions complained of occurred.

Dated:

Law Office of Jeffrey Chabrowe, P.C.

by 

Andrew L. Hoffman, Esq.

Attorneys for Plaintiff

261 Madison Avenue, 12th FL  
New York, NY 10016

SUPREME COURT STATE OF NEW YORK  
COUNTY OF BRONX

-----X  
ROBERTO RIVERA,

Plaintiff,

Index No.:

-against-

**VERIFIED**  
**COMPLAINT**

THE CITY OF NEW YORK, NEW YORK CITY  
DEPARTMENT OF CORRECTIONS, AND RIKERS  
CORRECTIONS OFFICER(S) JOHN DOE #1-10 (THE  
NAME JOHN DOE BEING FICTICIOUS, AS THE  
TRUE NAME(S) IS/ARE PRESENTLY UNKNOWN),

**JURY TRIAL**  
**DEMANDED**

Defendants.  
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The Plaintiff, complaining by his attorney(s), THE LAW OFFICE OF JEFFREY  
CHABROWE, P.C., respectfully shows this Court and alleges:

**INTRODUCTION**

1. This is a civil rights action to vindicate the rights of Plaintiff, and former Rikers Island detainee, Roberto Rivera, who was caught in the crossfire of a 30-plus person brawl in August of 2013, slashed in the back of his head and chin, and stabbed in the eye with a broken broom handle.
2. Corrections Officers watched the melee go on for over an hour without intervening, as detainees banged on security glass, begging for help.
3. Upon information and belief, portions of the brawl were filmed by the otherwise idle corrections staff, and later used for "training purposes."
4. Mr. Rivera, who is currently serving a five year sentence at Attica Correctional Facility, suffered permanent facial disfigurement and loss of all vision in the eye that was stabbed.

5. The individual Defendants in this case are now being sued for their respective roles in the violation of Mr. Rivera's rights.
6. The City of New York is being sued for failing to properly train, supervise, and/or discipline New York City correctional officers, and for continuing to tolerate, defend, and sanction a widely publicized "culture of brutality" at Rikers Island that shamefully continues to this day.

### **THE PARTIES**

7. At all times relevant herein, Plaintiff ROBERTO RIVERA was incarcerated at Rikers Island Correctional Facility in Bronx County, NY; as such, pursuant to CPLR § 504(3), Bronx County is the proper venue for this action.
8. Upon information and belief, at all times hereinafter mentioned, the Defendant, CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York, and that at all times relevant all Defendants were acting for, upon, and in furtherance of the business of their employer and within the scope of their employment.
9. Upon information and belief, at all times hereinafter mentioned, the Defendant, CITY OF NEW YORK, its agents, servants, and employees, operated, maintained and controlled the RIKERS ISLAND CORRECTIONAL FACILITY, including all personnel thereof.
10. The Rikers Island Correctional Facility is a local governmental agency, duly formed and operating under and by virtue of the Laws and Constitution of the State of New York and the warden of the Rikers Island is responsible for the policies, practices, and customs of

the facility as well as the hiring, screening, training, supervising, controlling and disciplining of its employees, and is the final decision maker for that agency.

11. This action arises under the laws of the State of New York and the United States Constitution.
12. Upon information and belief, all of the complained of actions listed herein occurred in the Rikers Island Correctional Facility, Bronx, New York.
13. Individual Defendants in this action are being sued in both their individual and official capacities.

#### **STATEMENT OF FACTS**

14. The Plaintiff's claim arose on August 5, 2013 at about 9:20PM at George R. Vierno Center ("GRVC"), Rikers Island, New York.
15. At said date/time/place, a fight broke out, stemming from simmering discontent over the food service arrangement in the unit.
16. Upon information and belief, one faction of detainees was upset that another faction had control over distribution of the food.
17. Upon information and belief, the fight involved as many as 38 or more inmates.
18. The brawl was allowed to continue as Corrections Officers watched, doing nothing to stop it.
19. As the melee continued, Plaintiff Roberto Rivera, who had nothing to do with initiating or perpetuating the fight and was not criminally charged, was stabbed in the eye with a broken broom handle, permanently blinding him.
20. Mr. Rivera was also slashed in the back of the head and chin with a knife like instrument.

21. As the situation continued to unravel, several inmates began banging on a security window, desperately begging staff to come in, or let them out for safety—but to no avail.
22. Upon information and belief, portions of the brawl were filmed by the otherwise idle corrections staff, and later used for “training purposes.”
23. Approximately one hour into the fight, the combatants called a momentary truce to allow those who appeared near death, including Mr. Rivera, access to medical attention.
24. The fight was allowed to continue for approximately 30 more minutes before officers finally intervened.
25. Defendants remained slow in providing adequate medical care to Mr. Rivera, and those delays contributed to his undue pain and suffering.
26. As a direct result of the Defendants’ despicable actions, Plaintiff Roberto Rivera has been permanently damaged, and continues to suffer to this day.

### **STATE CLAIMS**

27. Notice of the Plaintiff’s claim, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose was duly served upon the Comptroller of the City of New York on September 24, 2013.
28. More than thirty (30) days have elapsed since the Notice of Claim was served upon the Defendant City of New York and said defendant has neglected to initiate any settlements thereof.
29. This action has been commenced within One Year and Ninety-Days after the cause of action arose.

30. The amount of damages in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.
31. On November 6, 2013, a duly authorized representative of the City of New York entered into a stipulation with the incarcerated Plaintiff to, *inter alia*, adjourn any and all 50h hearings pending the Plaintiff's release from prison. **See Exhibit A.**

**AS AND FOR THE FIRST CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF ROBERTO RIVERA**  
**AGAINST ALL DEFENDANTS**

**—Negligence—**

32. Plaintiff incorporates by reference and realleges each and every allegation stated in Paragraphs 1 through 31.
33. At all relevant times, Defendants owed Mr. Rivera a common law duty to use reasonable care in carrying out the business of Rikers Island Correctional Facility, so as to avoid the foreseeable risk of injury to detainees.
34. Defendants breached their duty of reasonable care to the Plaintiff in placing two rival factions together in the same housing area, knowing the substantial potential for violent conflict therein.
35. Defendants breached their duty of reasonable care to the Plaintiff in failing to ensure dangerous contraband, including the sharp instruments used in slashing Roberto Rivera's head and face, were kept out of the hands of detainees and the facility.
36. Defendants breached their duty of reasonable care to the Plaintiff in failing to act reasonably or otherwise abide by the New York City Department of Corrections own published standards for managing a correctional facility.

37. Defendants breached their duty of reasonable care to the Plaintiff through their failure to institute a reasonable food distribution system, given the foreseeable dangers associated with allowing one rival group control the food of another in a correctional facility.
38. Defendants breached their duty of reasonable care in failing to intervene once the fight had broken out, despite knowing the dangers (i.e., inter alia, permanent disfigurement or death) associated with allowing such a brawl to continue.
39. Defendants breached their duty of reasonable care to the Plaintiff in failing to provide adequate or timely medical care for his injuries.
40. The injuries to the Plaintiff were due wholly and solely to the negligence of the Defendants, and without any comparative negligence contributing thereto.
41. Defendants' inability, unwillingness, and/or abject failure to adequately manage the facility as set forth, or otherwise abide by the D.O.C.'s own standards of care was the direct and proximate cause of Mr. Rivera's injuries.
42. As a result of the aforescribed, Mr. Rivera has been permanently damaged.

**AS AND FOR THE SECOND CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF ROBERTO RIVERA**  
**AGAINST ALL DEFENDANTS**

**-Negligent Infliction of Emotional Distress-**

43. Plaintiff incorporates by reference and reallege each and every allegation stated in Paragraphs 1 through 42.
44. As a direct and proximate result of the Defendants' outrageous departure from accepted standards of care as described herein, Plaintiff was caused to suffer severe emotional distress.

**AS AND FOR THE THIRD CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF ROBERTO RIVERA**  
**AGAINST ALL DEFENDANTS**

**-Intentional Infliction of Emotional Distress-**

45. Plaintiff incorporates by reference and realleges each and every allegation stated in Paragraphs 1 through 44.
46. Defendants each knowingly and deliberately conspired together to orchestrate an environment ripe for violent conflict, and once the violence broke out, stood idly by and and/or filmed the encounter for entertainment and/or “training purposes,” and directed other corrections staff not to intervene and/or call for appropriate supports.
47. Said conduct was beyond extreme and outrageous, and was obviously instigated with an intent to cause and/or in brazen disregard of a substantial probability of causing severe emotional distress to the Plaintiff.
48. As a direct and proximate result, Plaintiff was caused to suffer severe emotional distress.

**AS AND FOR THE FOURTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF ROBERTO RIVERA**  
**AGAINST ALL DEFENDANTS**

**—Negligent Hiring, Training, and Supervision—**

49. Plaintiff incorporates by reference and realleges each and every allegation stated in Paragraphs 1 through 48.
50. At all times relevant, Defendants were grossly negligent, careless, and reckless in hiring, retaining, supervising, and promoting employees, “the corrections staff” herein, in that said officers, as employees of the City of New York, were not qualified to be hired or retained or promoted as corrections officers, lacked the experience, deportment, skill,



training, and ability to be employed by the Defendant City of New York; to be retained by the Defendant City of New York; and to be utilized in the manner that each was employed on the day in question.

51. At all times relevant, Defendant City of New York and John Doe(s) were grossly negligent and otherwise failed to exercise due care and caution in its/their hiring, retaining, and/or promoting practices; in that the Defendant City of New York and Defendant John Doe(s) failed to adequately investigate officers' backgrounds; adequately screen and test the Defendant officers; failed to adequately monitor the Defendant officers; failed to properly discipline officers who violated DOC guidelines; failed to properly train and retrain the Defendant officers; and the Defendant City of New York, its' agents, servants, and/or employees, were otherwise careless, grossly negligent, and reckless.
52. The aforesaid occurrences were caused wholly and solely by reason of the gross negligence of Defendants, their agents, servants, and/or employees without any negligence on the part of the Plaintiff contributing thereto.
53. That by reason of the aforesaid, Plaintiff has been permanently damaged.

**AS AND FOR THE FIFTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF ROBERTO RIVERA**  
**AGAINST ALL DEFENDANTS**

**Violation of Constitutional Rights Under Color of State Law**  
**—Failure to Protect/State Created Danger—**

54. Plaintiffs incorporate by reference and reallege each and every allegation stated in Paragraphs 1 through 53.

55. The Due Process Clause of the Fourteenth Amendment of the United States Constitution protects citizens from state actors who affirmatively create or enhance the danger of private violence against citizens.
56. The actions of Defendants violated Plaintiff's rights under the United States Constitution. Given the total absence of any legal justification for explicitly or implicitly allowing and effectively sanctioning violence against the Plaintiff by other detainees at Rikers Island, Defendants' conduct shocks the contemporary conscience and was in no way Objectively Reasonable under any set of circumstances.
57. Defendants' egregious and outrageous actions were motivated by bad faith, malice, and a deliberate indifference to the rights of the Plaintiff.
58. This conduct also represents a violation of 42 U.S.C. § 1983, given that said actions were undertaken under color of state law.
59. As a direct and proximate result of the unconstitutional acts described above, the Plaintiff was permanently damaged.

**AS AND FOR THE SIXTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF ROBERTO RIVERA**  
**AGAINST DEFENDANT CITY OF NEW YORK**

**Violation of Constitutional Rights Under Color of State Law**  
**-Denial of Medical Care-**

60. Plaintiff Roberto Rivera incorporates by reference and realleges each and every allegation stated in Paragraphs 1 through 59.
61. Under the Fourteenth Amendment, states must not deprive pre-trial detainees of their basic human needs – e.g., food, clothing, shelter, medical care, and reasonable safety.

62. Plaintiff was denied the immediate medical care he required as Defendants allowed the brawl to continue, and were otherwise slow to provide adequate medical care thereafter.

63. Defendants' egregious and outrageous conduct caused the Plaintiff to suffer substantial pain and permanent injuries.

64. This conduct on the part of Defendants was a violation of 42 U.S.C. §1983, given that said actions were undertaken under color of state law.

65. Defendants' actions were motivated by bad faith, malice, and/or deliberate indifference to the rights Roberto Rivera.

66. As a direct and proximate result, Mr. Rivera was permanently damaged.

**AS AND FOR THE SEVENTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF ROBERTO RIVERA**  
**AGAINST DEFENDANT CITY OF NEW YORK**

**-Violation of Constitutional Rights Under Color of State Law**  
**-Implementation of Municipal Policies, Practices, and Customs that Directly Violate**  
**Constitutional Rights, Failure to Implement Municipal Policies to Avoid Constitutional**  
**Deprivations and Failure to Train and Supervise Employees**  
**Under Color of State Law-**

67. Plaintiffs incorporate by reference and reallege each and every allegation stated in Paragraphs 1 through 67.

68. Upon information and belief, Defendants City of New York and Doe #1-10 who were supervisors and final decision makers, as a matter of policy, practice, and custom, have acted with a callous, reckless and deliberate indifference to the Plaintiff's constitutional rights and laws of the United States, in that they failed to adequately discipline, train, supervise or otherwise direct correctional officers concerning the rights of detainees, and allowed or encouraged failures to investigate further when evidence plainly indicated Plaintiffs' rights were being violated.

69. In the alternative, and upon information and belief, Defendants City of New York and Doe #1-10 instituted policies addressing the topics listed above, but through a culture of gross negligence, carelessness, and malice demonstrated a deliberate and willful indifference to the constitutional rights of the Plaintiffs.
70. In addition, the nature, regularity, and scale of recent press revelations<sup>1</sup> involving the gross mistreatment of detainees at Rikers Island, gives rise to an overwhelmingly strong inference of systemic incompetence and corruption on the part of the New York City Department of Corrections, as such a legacy of injustices cannot plausibly be laid at the feet of a few rogue officers.

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<sup>1</sup> Feds Charge Rikers Island Officer with Letting Inmate Die, New York Daily News, March 24, 2014, available at <http://www.nydailynews.com/new-york/feds-charge-rikers-island-officer-letting-inmate-die-article-1.1732076>; Homeless Veteran 'basically baked to death at Rikers Island while being Held on a Trespassing Charge, New York Daily News, March 20, 2014, available at <http://www.nydailynews.com/new-york/inmate-rikers-island-basically-baked-death-100-degree-room-report-article-1.1726713>; Rikers Island Struggles with a Surge in Violence and Mental Illness, New York Times, March 18, 2014, available at [http://www.nytimes.com/2014/03/19/nyregion/rise-in-mental-illness-and-violence-at-vast-jail-on-rikers-island.html?\\_r=0](http://www.nytimes.com/2014/03/19/nyregion/rise-in-mental-illness-and-violence-at-vast-jail-on-rikers-island.html?_r=0); Rikers Violence Out of Control, Village Voice, May 9, 2014, available at <http://www.villagevoice.com/2012-05-09/news/rikers-violence-out-of-control/>; U.S. Inquiry Finds a 'Culture of Violence' Against Teenage Inmates at Rikers Island, New York Times, August 4, 2014, available at [http://www.nytimes.com/2014/08/05/nyregion/us-attorneys-office-reveals-civil-rights-investigation-at-rikers-island.html?\\_r=1](http://www.nytimes.com/2014/08/05/nyregion/us-attorneys-office-reveals-civil-rights-investigation-at-rikers-island.html?_r=1); Rikers: Where Mental Illness Meets Brutality in Jail, New York Times, July 14, 2014, available at <http://www.nytimes.com/2014/07/14/nyregion/rikers-study-finds-prisoners-injured-by-employees.html?module=Search&mabReward=relbias%3Ar%2C%7B%221%22%3A%22RI%3A9%22%7D>; U.S. Accuses Rikers Officer of Ignoring Dying Plea, New York Times, March 24, 2014; Warden at Rikers Island Demoted After Inmate Dies in Overheated Cell, New York Times, April 3, 2014; What I Saw at Rikers Island: Cecily McMillan on Brutality and Humiliation on Rikers Island, New York Times, July 23<sup>rd</sup>, 2014; New York Hires Consultant to Create Rikers Reform Plan, New York Times, September 8, 2014; Family of Rikers Inmate Sues Over His Death, New York Times, September 11, 2014.

71. Defendants also, upon information and belief, demonstrated deliberate indifference to the rights of detainees in the City of New York by failing to adequately hire, screen, train, and supervise correctional officers at Rikers Island.
72. The policies, procedures, customs and practices of the above-referenced Defendants violated the Constitutional rights of the Plaintiff under the Fifth, Eighth, and Fourteenth Amendments of the United States Constitution.
73. This conduct on the part of Defendants also represents a violation of 42 U.S.C § 1983, given that said actions were undertaken under color of state law.
74. Upon information and belief, none of the Defendants named herein have been disciplined in any way for their actions relative to the Plaintiff.
75. As a direct and proximate result of the unconstitutional acts described above, the Plaintiff has been permanently damaged.

#### **DEMAND FOR PUNITIVE DAMAGES**

76. The actions of Defendants described herein were extreme and outrageous, and shock the conscience of a reasonable person. Consequently, an award of punitive damages is appropriate to punish the named Defendants. The Plaintiffs do not seek punitive damages against the City of New York.

#### **DEMAND FOR TRIAL BY JURY**

77. The Plaintiffs hereby demand a trial by jury.

**PRAYER FOR RELIEF**

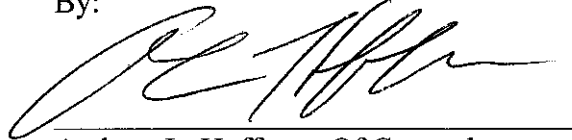
WHEREFORE, Plaintiff Roberto Rivera requests that this Honorable Court grant the following relief:

- A. A judgment against all individual Defendants for compensatory damages, and punitive damages in an amount to be determined by a properly charged jury;
- B. A judgment against the Defendant City of New York for compensatory damages in an amount to be determined by a properly charged jury;
- C. A monetary award for attorneys fees and costs of this action, pursuant to 42 U.S.C. § 1988;
- D. Any other relief this Court finds to be just, proper, and equitable.

Dated: New York, New York  
October 29, 2014

Respectfully Submitted By:

The Law Office of Jeffrey Chabrowe, P.C.  
By:



Andrew L. Hoffman, Of Counsel  
261 Madison Avenue, 12 Floor  
New York, New York 10016  
T: (212) 736-3935  
E: ahoffman@andrewhoffmanlaw.com

**ATTORNEY'S VERIFICATION**

STATE OF NEW YORK )

SS.:

COUNTY OF NEW YORK)

I, the undersigned, am an attorney admitted to practice in the Courts of the State of New York, and say that:

I am associated with the attorney of record for the Plaintiff, The Law Office of Jeffrey Chabrowe, PC, 261 Madison Avenue, 12<sup>th</sup> FL, New York, New York 10016.

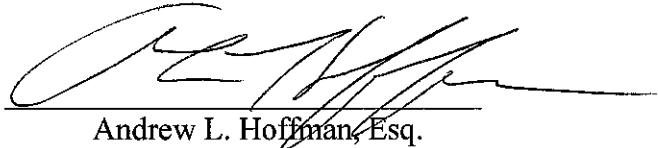
I have read the foregoing Complaint and know the contents thereof; that and the same is true to my knowledge, except as to the matters therein stated to be alleged on information and belief, and, as to those matters I believe them to be true.

My belief as to those matters therein not stated upon knowledge is based on investigation, correspondence, conferences and all facts, data, information, reports, statements, etc. in our file pertaining to this matter.

The reason I make this Affirmation instead of the Plaintiff is that the Plaintiff is not within the county where Affiant maintains his office.

I affirm that the foregoing statements are true under penalties of perjury.

Dated:           New York, New York  
                  October 29, 2014

  
Andrew L. Hoffman, Esq.